

KNOW YOUR RIGHTS

Legal Framework for Community Opposition

Your legal options for opposing ICE detention warehouses, from protests to FOIA requests to zoning challenges.

Important: This document provides general legal information, not legal advice. Laws vary by state and locality. For specific legal questions, consult a local attorney or contact the ACLU's nearest chapter.

YOUR RIGHTS

The Right to Protest

The First Amendment protects your right to peaceful protest on public property. Here's what you need to know:

Public sidewalks, parks, and plazas: You have the right to gather, hold signs, chant, and distribute flyers on any public sidewalk, park, or plaza without a permit — as long as you don't block traffic or building entrances.

Permit requirements: Some cities require permits for large gatherings (typically 25-50+ people) or for using sound amplification equipment. Check with your city clerk's office. Permit requirements must be content-neutral — they cannot deny a permit based on your message.

Photographing and recording: You have the right to photograph or record anything visible from public property, including the exterior of warehouse sites, government buildings, and public meetings. Police cannot confiscate your phone or camera without a warrant.

Interactions with law enforcement: If police approach you during a lawful protest, you may ask: 'Am I free to leave?' If yes, you may leave. If detained, clearly state: 'I am exercising my right to remain silent. I want to speak with a lawyer.' Do not resist physically.

SAFETY TIP

Always protest in groups. Designate a legal observer who does not participate in the protest but documents interactions with law enforcement. Have the number of a local legal aid organization saved in your phone.

INFORMATION ACCESS

Freedom of Information Act (FOIA) Requests

FOIA is one of your most powerful tools. Federal agencies — including ICE, DHS, and the General Services Administration (GSA) — are legally required to respond to FOIA requests.

What to request:

- All communications between ICE/DHS and contractors regarding [SPECIFIC ADDRESS]
- Environmental impact assessments for the proposed facility
- Contracts, lease agreements, and financial documents related to the facility
- Health and safety inspection records for the property
- Correspondence with local government officials about the facility

How to file:

- **ICE FOIA:** Submit online at ice.gov/foia or mail to: ICE FOIA Office, 500 12th Street SW, Stop 5009, Washington, DC 20536-5009
- **DHS FOIA:** Submit online at dhs.gov/foia
- **State/local records:** Most states have their own public records laws. Search '[YOUR STATE] public records request' for the process.

Timeline: Federal agencies have 20 business days to respond (though delays are common). Request expedited processing if you can demonstrate 'urgency to inform the public about federal government activity.' Media involvement strengthens this argument.

LOCAL TOOLS

Zoning and Land Use Challenges

Local zoning laws are often the most effective legal tool against detention warehouses. Key approaches:

Zoning classification challenge: Industrial warehouses are typically zoned for commercial/industrial use. A 24/7 residential detention facility may require a different zoning classification — or a special use permit that requires public hearings and local approval.

Building code enforcement: Converting a warehouse to residential occupancy triggers building code requirements for fire suppression, ventilation, plumbing capacity, ADA accessibility, and emergency egress. Request that your local building inspector conduct a review.

Environmental review: Large-scale changes in building use may trigger environmental review requirements under state law (even if federal exemptions apply to ICE). Check whether your state's environmental review act applies to changes in water usage, sewage discharge, or traffic generation.

Moratorium legislation: City councils and county boards can pass emergency moratoriums on specific types of facilities. This has been the single most effective legal tool — it buys time, creates a legal barrier, and requires ICE to engage with the political process.

KEY INSIGHT: Federal Preemption Is Not Absolute

The federal government may claim it can override local zoning. In practice, this is legally contested and operationally difficult. The federal government cannot easily operate a massive facility against active local government opposition — it needs local utilities, local emergency services, and local cooperation. A moratorium forces them to the negotiating table.

PUBLIC MEETINGS

Your Rights at Government Meetings

Open meetings laws: Most states require that government bodies conduct business in public. City council meetings, planning commission hearings, and board of supervisors meetings must be open to the public with advance notice.

Public comment periods: Most local government bodies provide time for public comment. You have the right to speak during these periods on any topic within the body's jurisdiction. Time limits (usually 2-3 minutes) must be applied equally to all speakers.

Recording: You generally have the right to record public meetings. Some jurisdictions require notification. Check your local rules, but the trend nationwide is toward full recording rights.

RESOURCES

Legal Support Organizations

- **ACLU — [aclu.org](https://www.aclu.org):** Free legal resources on protest rights, FOIA, and civil liberties. Each state has a local chapter.
- **National Lawyers Guild — [nlg.org](https://www.nlg.org):** Provides legal observers for protests and know-your-rights trainings.
- **Reporters Committee for Freedom of the Press — [rcfp.org](https://www.rcfp.org):** Resources on public records requests and open meetings laws.
- **Your state's legal aid society:** Search '[YOUR STATE] legal aid' for free legal assistance in your area.

You have more legal power than you think. The federal government cannot build a facility over the sustained legal, political, and community opposition of an organized neighborhood. Use every tool available — FOIA, zoning, building codes, moratoriums, and your First Amendment rights.